

The Minor's Compromise is unopposed.^[1] The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

^[1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-00917

CASE NAME: MENGJIAO REN VS. YONGKE YU

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT CHUXIN YU'S FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE**

FILED BY: REN, MENGJIAO

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

18. 9:01 AM CASE NUMBER: C25-00917

CASE NAME: MENGJIAO REN VS. YONGKE YU

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT CHUXIN YU'S FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: REN, MENGJIAO

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

19. 9:01 AM CASE NUMBER: C25-00917

CASE NAME: MENGJIAO REN VS. YONGKE YU

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT CHUXIN YU'S FURTHER RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORY, SET ONE**

FILED BY: REN, MENGJIAO

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C24-00605

CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO

HEARING ON SUMMARY MOTION

FILED BY: AQUINO, WILSON

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative summary adjudication filed by defendants and cross-complainants Wilson Aquino, Jaime Guevara, and Florencio Amezcua. For the reasons set forth, the Court rules as follows: (1) motion for summary judgment on all claims in the complaint – **DENIED**; (2) motion for summary adjudication of breach of contract cause of action in cross-complaint – **DENIED**; (3) motion for summary adjudication of 2nd, 3rd, 5th, 9th, 10th, 12th, 13th, 14th, 15th, 16th, 21st, 23rd, and 25th affirmative defenses in answer to cross-complaint – **GRANTED**; (4) motion for summary adjudication of 7th, 17th and 20th affirmative defenses in answer to cross-complaint – **DENIED**; (5) motion for summary adjudication of first, fifth, and sixth causes of action of the complaint – **DENIED**; (7) motion for summary adjudication of the second, third, and fourth causes of action of the complaint – **GRANTED**; and (8) motion for summary adjudication of claim for punitive damages in the complaint - **DENIED**.

Background

This action involves a dispute between plaintiff/cross-defendant Vikas Prakash (for convenience, "Mr. Prakash," "Plaintiff," or "Opposing Party") and defendants/cross-complainants Wilson Aquino, Jaime Guevara, and Florencio Amezcua (for convenience, "Aquino Parties," "Defendants," or "Moving Parties") over investment in and sale of a business and the interpretation of and performance under a Business Purchase Agreement ("BPA"). (Compl.; X-Compl. Exh. A.) The complaint includes six causes of action (labeled as "counts" but referred to in this ruling as causes of action) for fraud in the inducement (1st C/A), intentional misrepresentation (2nd C/A), concealment (3rd C/A), negligent misrepresentation (4th C/A), unjust enrichment (5th C/A), and declaratory relief (6th C/A). The cross-complaint alleges a cause of action for breach of contract (1st C/A) and for common counts for goods sold and delivered and money paid (2nd C/A).

Legal Standards Governing Summary Judgment and Summary Adjudication

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The Court of Appeal